

19STCV38374 19STCV38374

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Case Number: 19STCV38374 Hearing Date: July 10, 2026 Dept: 224

Shahnaz v. Rochelle H. Sterling et al.,

TENTATIVE RULING

The motion to strike or tax costs on appeal is DENIED in its entirety. Plaintiff has not carried her burden of demonstrating that any of the claimed costs were unreasonable or unnecessary, and each item is recoverable under California Rules of Court, rule 8.278(d)(1). Defendants are awarded their costs on appeal.

Introduction

On October 23, 2019, Plaintiff Shahnaz Amirtaleh filed the Complaint in this action.

On November 13, 2025, the Court of Appeal filed its opinion resolving the appeal in Defendants' favor and awarding Defendants, as the prevailing parties, their costs on appeal.

On March 13, 2026, the remittitur issued.

On April 17, 2026, Defendants filed their Memorandum of Costs on Appeal, seeking a total of \$3,073.16.

On April 27, 2026, Plaintiff filed the instant Motion to Strike and/or Tax Costs on Appeal.

On June 25, 2026, Defendants filed their Opposition.

On July 1, 2026, Plaintiff filed her Reply.

Motion to Strike or Tax Costs

"[A] party prevailing in the Court of Appeal in a civil case other than a juvenile case is entitled to costs on appeal." (Cal. Rules of Court, rule 8.278, subd. (a)(1).) "Within 40 days after issuance of the remittitur, a party claiming costs awarded by a reviewing court must serve and file in the superior court a verified memorandum of costs under rule 3.1700." (Id. at subd.

(c)(1).) "A party may serve and file a motion in the superior court to strike or tax costs claimed under (1) in the manner required by rule 3.1700." (Id. at subd. (c)(2).) The only costs that are recoverable are:

(A) Filing fees;

(B) The amount the party paid for any portion of the record, whether an original or a copy or both. The cost to copy parts of a prior record under rule 8.147(b)(2) is not recoverable unless the Court of Appeal ordered the copying;

(C) The cost to produce additional evidence on appeal;

(D) The costs to notarize, serve, mail, and file the record, briefs, and other papers;

(E) The cost to print and reproduce any brief, including any petition for rehearing or review, answer, or reply;

(F) The cost to procure a surety bond, including the premium, the cost to obtain a letter of credit as collateral, and the fees and net interest expenses incurred to borrow funds to provide security for the bond or to obtain a letter of credit, unless the trial court determines the bond was unnecessary; and

(G) The fees and net interest expenses incurred to borrow funds to deposit with the superior court in lieu of a bond or undertaking, unless the trial court determines the deposit was unnecessary

(Id. at subd. (d)(1)(A-G).)

"Any notice of motion to strike or to tax costs must be served and filed 15 days after *service* of the cost memorandum." (Cal. Rules of Court, rule 3.1700, subd. (b)(1).) "If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that were not reasonable or necessary. On the other hand, if the items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs." (*Ladas v. California State Automobile Ass'n* (1993) 19 Cal.App.4th 761, 774 (*Ladas*).)

Motion to Strike or Tax Costs

Plaintiff moves to strike or tax the costs claimed in Defendants' Memorandum of Costs on Appeal on the grounds that they are excessive, unnecessary, duplicative, and/or not recoverable under the California Rules of Court.

Item No. 1: Filing Fees

Plaintiff moves to strike or tax \$437.70 in filing fees on the grounds that the amount is stated in lump-sum form without itemization or supporting invoices, receipts, or billing documentation.

Filing fees are expressly allowable as costs on appeal under California Rules of Court, rule 8.278(d)(1)(A). Bare allegations that a charge is unsupported or administrative in nature are insufficient to overcome the prima facie showing established by a verified memorandum of costs. (See *County of Kern v. Ginn* (1983) 146 Cal.App.3d 1107.)

Plaintiff's objection has in any event been answered. Defendants' opposition itemizes each component and attaches proof of payment: \$7.50 to file the stipulation to extend the time to file the respondent's brief; \$409.20 to file the respondent's brief;

\$7.50 to file the motion to augment the record; \$6.00 to file the proposed order on that motion; and \$7.50 to file the request for oral argument (Dawkins Decl., Exhs. 1-5). Each is a fee paid to file a document in the Court of Appeal in the course of defending the appeal, and each is recoverable under rule 8.278(d)(1)(A).

Accordingly, the Court declines to tax costs on this basis.

Item No. 2: Preparation of the Original and Copies of Clerk's Transcript

Plaintiff moves to strike \$2,453.15 for the clerk's transcript on the grounds that the cost is duplicative, unnecessary, and unsupported, arguing that she secured the original clerk's transcript — a copy of which was purportedly available to both parties — such that Defendants had no need to purchase a separate copy.

Plaintiff relies principally on *Smith v. Smith* (1969) 1 Cal.App.3d 952, 957. *Smith* construed a former version of the rules. The current rule, adopted in 2008, expressly authorizes recovery of the amount paid for a copy of the record (CRC 8.278(d)(1)(B)). Rule 8.278(d)(1)(B) expressly authorizes recovery of "[t]he amount the party paid for any portion of the record, whether an original or a copy or both." The current rule thus contemplates that a prevailing respondent may recover the cost of its own copy of the record. A respondent's copy of the record is reasonably necessary to prepare the respondent's brief and to cite the record on appeal.

Accordingly, the Court declines to tax costs on this basis.

Item No. 3: Preparation of Reporter's Transcript

Plaintiff moves to strike \$182.31 for the reporter's transcript on the grounds that Defendants failed to designate any reporter's transcript proceedings in their Notice Designating Record on Appeal, and that, under the Superior Court's January 16, 2026 public notice, a respondent's copy of the reporter's transcript is "optional" and a matter of convenience.

As with the clerk's transcript, the amount a party pays for a copy of the reporter's transcript is recoverable under rule 8.278(d)(1)(B). Under rule 8.130, it is the appellant who designates the oral proceedings to be transcribed. A respondent designates only additional proceedings it wishes to add. Plaintiff, as appellant, designated the reporter's transcript and the specific hearings to be transcribed and Defendants properly requested a copy of that designated transcript. (Dawkins Decl., Exh. 8.) That Defendants designated no additional proceedings does not render the cost of their copy unrecoverable.

The Court's January 16, 2026 notice does not compel a different result. That notice describes the administrative options by which a respondent may obtain a copy of the reporter's transcript. The characterization of a court-ordered full copy as "optional" means only that a respondent need not order one from the court and may obtain copies elsewhere, as Defendants did through a copy service for \$182.31. The notice does not override 8.278(d)(1)(B), which expressly makes the amount paid for a copy of the record recoverable. The cost is documented and reasonable. (Dawkins Decl., Exh. 7.)

Accordingly, the Court declines to tax costs on this basis.

Conclusion

Plaintiff has not carried her burden of demonstrating that any of the claimed costs were unreasonable or unnecessary, and each item is recoverable under California Rules of Court, rule 8.278(d)(1). The motion to strike or tax costs on appeal is DENIED in its entirety. Defendants are awarded their costs on appeal.

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative, and copying all parties in the email communication. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court will adopt the tentative as the final order, or take the matter off calendar at its discretion.